



File No.: EXP202206626

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Ms. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on June 8, 2022. The complaint is directed against Mr. B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), for the installation of a video surveillance system located in URBANIZATION ***URBANIZATION.1, ***LOCALITY.1, LLEIDA, with indications of a possible violation of the provisions of Article 5.1.c) of the General Data Protection Regulation (hereinafter, GDPR).

The reasons supporting the complaint are as follows:

The complainant states that she is a neighbor of the respondent and that he has installed a video surveillance camera in his home that, due to its location and orientation, is capable of capturing images of the complainant's home, without having authorization for this.

She provides an image of the camera's location.

The documents submitted are:

- Photographic report

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on June 15, 2022, as recorded in the acknowledgment of receipt in the file.

No response has been received to this forwarding.

THIRD: On August 8, 2022, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

FOURTH: On October 26, 2022, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, and the respondent submitted a written statement in which he only stated that:

“ON DATE 04/11/2022, NOTIFICATION OF THE INITIATION AGREEMENT OF SANCTIONING PROCEDURE WAS RECEIVED.

FOR THIS PARTY, IT SHOULD BE NOTED THAT ON DATE 09/06/2022, THE REQUEST RECEIVED BY THIS DEPARTMENT WITH C.S.V. XXXXXXXXXXXX WAS ALREADY ADDRESSED...”

SIXTH: On February 20, 2023, a proposal for resolution was made, proposing that the Director of the Spanish Agency for Data Protection sanction Mr. A.A.A., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR, with a fine of €300 (three hundred euros).

SEVENTH: On March 16, 2023, the respondent submitted allegations to the proposal for resolution, stating:

1. In the proven facts, they indicate that the respondent has installed a video surveillance camera in his home. This is completely untrue.
2. The cameras installed on my property do not at any time focus, record, or reproduce any personal or material element that is not within my property.
3. The cameras installed on my property are solely for the purpose of preserving the safety of the people, property, facilities, and domestic animals present, and should indicate the incidents occurring

within the premises.

5. None of the cameras are directed towards the private property of any neighbor or could focus on such property or persons.

6. None of the cameras can record images in spaces owned by third parties.

9. The cameras only capture images of private areas, in this case, my property along with the rear area where the incidents occurred.

17. I request access to the file in order to verify its content and formulate allegations, complaints, claims, and anything else I deem necessary.

18. A photographic report of the captures and limits of the cameras is attached.

EIGHTH: In response to the request for the file by the respondent, on June 9, 2023, the file was forwarded, with a new deadline for him to make any allegations he deems pertinent, in light of it.

NINTH: On July 5, 2023, the respondent submitted new allegations, following the forwarding of the file, in which he states:

1. At no time has any infringement been committed as the cameras only capture images of private areas, in this case, my property along with the rear area where the incidents that are still under investigation occurred (both the toxic substances and the affected species).

2. The insurance entity is aware of the installation of cameras and periodically reviews their location.

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3- A public report from the municipal corporation is also attached, indicating the reason for the installation of the cameras and their scope of visibility.

4- An expert report is attached, certifying the condition and situation of the cameras, as well as whether they are fixed or mobile and their range.

From the actions taken in the present procedure and the documentation in the file, the following have been established:

PROVEN FACTS

FIRST: The claimant states that they are a neighbor of the respondent and that the latter has installed a surveillance camera in their home which, due to its location and orientation, is capable of capturing images of the claimant's residence, without having authorization for this.

An image of the camera's location is provided.

SECOND: In the images provided by the respondent, it can be seen that there are two cameras that focus beyond the private property of the respondent.

LEGAL GROUNDS

I

Jurisdiction

According to the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Response to Allegations

After examining the allegations of the respondent, these allegations are not accepted, based on the following arguments:

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The report from the Ajuntament ***LOCALITY.1 provided has no validity; it is merely a document with the letterhead and seal of the Town Hall, but without any signature.

And in that document, it is stated: "It is stated that perimeter cameras have had to be installed outside their isolated single-family home. That the street in front of the house is not a public road, forms part of the urbanization, and is privately owned."

In this regard, Royal Decree 128/2018, of March 16, which regulates the legal regime of local administration officials with national habilitation, establishes the following:

Article 2. Necessary public functions in all Local Corporations.

1. The necessary public functions in all Local Corporations, whose administrative responsibility is reserved for local administration officials with national habilitation, are as follows:

a) Secretariat, including public faith and mandatory legal advice.

Article 3 specifies what public faith includes. And although the issuance of this type of report is not specifically provided for, it is true that any matter on which its authenticity is to be determined, such as the ownership of a road, would correspond to the secretary of the Town Hall. This information can be obtained and certified from the documentation in the urban planning.

It is also indicated in the aforementioned municipal report: "The municipal guard, Agent 01, closes this report on July 3, 2023."

The functions of the municipal guard or agent are those established in the GENERAL TRAFFIC ORDINANCE of the Town Hall of Alcoletge, which states:

"TITLE ONE. COMPETENCIES OF THE LOCAL POLICE / MUNICIPAL AGENTS

Article 3. Local Police and Municipal Guards.

Local Police agents are competent in regulating urban traffic and formulating the complaints arising from violations of the provisions of this ordinance and other applicable provisions.

In the absence of Local Police agents, and in the presence of municipal guards, they will have the competencies determined under Articles 1 and 13 of Law 16/1991 of July 10, on local police (hereinafter LPL) and other concordant provisions.

According to what is provided in Article 13 of the LPL, the guards may carry out the following actions:

- a) Safeguard and monitor municipal goods, services, facilities, and dependencies.
- b) Order and regulate traffic within the urban nucleus, in accordance with traffic regulations.
- c) Participate in tasks of assistance to citizens and civil protection, in accordance with the provisions of the laws.
- d) Ensure compliance with regulations, ordinances, decrees, resolutions, and other municipal provisions and acts."

In light of the functions that municipal guards have according to the cited Ordinance, none of them include the issuance of reports like the one submitted in this procedure.

Finally, the respondent alleges that they attach an expert report, certifying the condition and situation of the cameras, as well as whether they are fixed or mobile and their range.

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However, there is no report from a procedural expert in the documentation received by this Agency. Nevertheless, regarding the scope of the cameras, it is noted in the photographs submitted by the responding party that there are two cameras that focus beyond their private property, as indicated in the Proven Fact Second of this resolution.

III

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is therefore pertinent to analyze whether the processing of personal data (image of individuals) carried out through the reported video surveillance system complies with the provisions established in the GDPR.

IV

Infringement

Article 6.1 of the GDPR establishes the circumstances under which the processing of personal data can be considered lawful.

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that individuals or legal entities, public or private, may carry out the processing of images through systems of cameras or video cameras for the purpose of preserving the safety of individuals and property, as well as their facilities.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing, only the relevant personal data that are necessary to fulfill the purpose for which they are processed may be processed. The processing must be adjusted and proportional to the purpose it is directed towards. The relevance in the processing of data must occur both at the time of data collection and in the subsequent processing of the same.

In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

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The application of the principle of data minimization in the area of video surveillance implies that images of public roads cannot be captured, since the processing of images in public places, unless there is governmental authorization, can only be carried out by the Security Forces and Corps.

On some occasions, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the purpose of security.

That is to say, cameras and video cameras installed for security purposes may not capture images of the public road unless it is essential for that purpose, or it is impossible to avoid it due to their location. And, in such extraordinary cases, the cameras may only capture the minimum portion necessary to preserve the safety of individuals and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, and in particular, it must not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

The installed cameras may not capture images of private spaces belonging to third parties and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the intention of intimidating them or affecting their private sphere without a justified cause is not permitted. Images in spaces owned by third parties may not be captured or recorded without the consent of their owners, or, where applicable, of the individuals present in those spaces.

Furthermore, it is disproportionate to capture images in private spaces, such as changing rooms,

lockers, or rest areas for workers.

V

Obligations regarding video surveillance

In accordance with the above, the processing of images through a video surveillance system, to be in compliance with current regulations, must meet the following requirements:

1.- Individuals or legal entities, public or private, may establish a video surveillance system for the purpose of preserving the safety of individuals and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

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2.- The images obtained may not be used for any ulterior purpose incompatible with the reason that motivated the installation of the video surveillance system.

3.- The obligation to inform the affected individuals, as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD, must be fulfilled. In this regard, Article 22 of the LOPDGDD establishes a "layered information" system concerning video surveillance. The first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data. This information shall be contained in a device placed in a sufficiently visible location and must be provided in advance. The information in the second layer must be available in a location easily accessible to the affected individual, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a website, and must refer to the remaining elements of Article 13 of the GDPR.

4.- The processing of images through the installation of camera systems or video cameras must be lawful and comply with the principles of proportionality and data minimization, as already indicated.

5.- The images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the moment knowledge of the existence of the recording is obtained.

6.- The data controller must maintain a record of processing activities carried out under its responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The data controller must conduct a risk analysis or, where appropriate, a data protection impact assessment, to identify the risks arising from the implementation of the video surveillance system, evaluate them, and, if necessary, adopt appropriate security measures.

8.- When a security breach occurs that affects the processing of cameras for security purposes, provided there is a risk to the rights and freedoms of individuals, it must be reported to the AEPD within a maximum period of 72 hours.

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A security breach is understood as the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, dated April 4. The Spanish Data Protection Agency provides access through its website

[<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and resolutions" / "regulations"),
 - the Guide on the use of video cameras for security and other purposes,
 - the Guide for compliance with the duty to inform (both available in the "Guides and tools" section).
- It is also of interest, in the case of carrying out low-risk data processing, the free tool Facilita (in the "Guides and tools" section), which, through specific questions, allows assessing the situation of the data controller regarding the personal data processing it carries out, and if applicable, generate various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

VI

Administrative Infraction

In accordance with the proven facts established during the sanctioning procedure, it is considered that the presented facts violate the provisions of Article 5.1.c) of the GDPR, constituting an infraction classified under Article 83.5.a) of the GDPR, which states the following:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; For the purposes of the statute of limitations for infractions, the infraction indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infractions are considered very serious and shall prescribe after three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

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a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

VII

Sanction

Article 58.2 of the GDPR states:

"Each supervisory authority shall have all of the following corrective powers:

(...)

d) to order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time;

(...)

i) to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case."

According to the provisions of Article 83.2 of the GDPR, the measure provided for in Article 58.2 d) of the aforementioned Regulation is compatible with the sanction consisting of an administrative fine. With respect to the infringement of Article 5.1.c) of the GDPR, based on the established facts, it is considered that the sanction to be imposed is an administrative fine.

The fine imposed must be, in each case, individual, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR.

In order to determine the administrative fine to be imposed, the provisions of Article 83.2 of the GDPR must be observed, which states:

"2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the measures provided for in Article 58, paragraph 2, letters a)

to h) and j)). In deciding whether to impose an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and detriment suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and detriment suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringements committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;
- j) adherence to codes of conduct pursuant to Article 40 or to approved certification mechanisms pursuant to Article 42;
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement."

For its part, regarding letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, "Sanctions and corrective measures," provides:

"1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party could have included the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject."

The balance of the circumstances considered, with respect to the infringement of Article 5.1 c) of the GDPR, allows for the setting of a fine of €300 (three hundred euros).

VIII

Measures

The text of the resolution establishes what the infringements committed have been and the facts that have led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the controller of the processing who fully knows their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

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It is warned that failure to comply with the requirements of this body may be considered an administrative infraction in accordance with the provisions of the GDPR, classified as an infraction in its articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

IV

Conclusion

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanction whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on Mr. B.B.B. with NIF ***NIF.1, for an infraction of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR, a fine of 300 euros (THREE HUNDRED euros).

SECOND: TO ORDER Mr. B.B.B. to, pursuant to Article 58.2 d) of the GDPR, within ten working days, adopt the following measures:

- Provide evidence of having removed the cameras in question, supplying documentary proof with date and time that verifies this fact, or, failing that, provide evidence of the regularization of the cameras, in accordance with current regulations, so that they do not record or capture images of the complainant's residence or of the public or private road that runs alongside the residences.

THIRD: TO NOTIFY this resolution to B.B.B.

FOURTH: To warn the sanctioned party that they must fulfill the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed during the executive period.

Once the notification is received and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next working day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next working day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative route in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses

their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded. 938-290523

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